

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4363

By: Moore of the House

and

Gollihare of the Senate

8
9
10 COMMITTEE SUBSTITUTE

11 An Act relating to higher education; amending 70 O.S.
12 2021, Section 4663, as amended by Section 1, Chapter
13 230, O.S.L. 2024 (70 O.S. Supp. 2025, Section 4663),
14 which relates to the board of trustees for Oklahoma
15 State University/Tulsa; striking Board of Trustees
16 authorization to promulgate rules and enact policies
17 to govern the processes and procedures of the Board;
18 deleting obsolete transition language; striking
19 process for selection of the president of Oklahoma
20 State University/Tulsa; and providing an effective
21 date.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. AMENDATORY 70 O.S. 2021, Section 4663, as
24 amended by Section 1, Chapter 230, O.S.L. 2024 (70 O.S. Supp. 2025,
25 Section 4663), is amended to read as follows:

26 Section 4663. A. On January 1, 1999, there shall be created
27 the Board of Trustees for Oklahoma State University/Tulsa which

1 shall consist of seven members who reside in Tulsa County or
2 contiguous counties, one member of the Board of Regents for the
3 Oklahoma Agricultural and Mechanical Colleges (A&M Board) who shall
4 reside in the First Congressional District, and one member who shall
5 be appointed by the chair of the A&M Board. The member of the A&M
6 Board and the member appointed by the chair of the A&M Board shall
7 serve as voting, ex officio members. For purposes of serving on the
8 Board of Trustees, the member of the A&M Board and the member
9 appointed by the chair of the A&M Board who are appointed to the
10 Board of Trustees shall not be subject to the dual office holding
11 restrictions in Section 6 of Title 51 of the Oklahoma Statutes. The
12 Governor shall appoint the other members of the Board of Trustees
13 with the advice and consent of the Senate. The members shall be
14 appointed to numbered positions with staggered terms to expire as
15 provided in this section. Successors to the initial board members
16 shall serve seven-year terms that shall expire on June 30 of the
17 seventh year following appointment. Vacancies on the Board shall be
18 filled for the unexpired term by the Governor with the advice and
19 consent of the Senate. The member of the A&M Board who resides in
20 the First Congressional District shall hold position number eight.
21 The member appointed by the chair of the A&M Board shall hold
22 position number nine. The numbered positions and terms shall be as
23 follows:

24

1 1. Position No. 1: The term of office of one member shall
2 expire on the 30th day of June, 2000, and each seven (7) years
3 thereafter;

4 2. Position No. 2: The term of office of one member shall
5 expire on the 30th day of June, 2001, and each seven (7) years
6 thereafter;

7 3. Position No. 3: The term of office of one member shall
8 expire on the 30th day of June, 2002, and each seven (7) years
9 thereafter;

10 4. Position No. 4: The term of office of one member shall
11 expire on the 30th day of June, 2003, and each seven (7) years
12 thereafter;

13 5. Position No. 5: The term of office of one member shall
14 expire on the 30th day of June, 2004, and each seven (7) years
15 thereafter;

16 6. Position No. 6: The term of office of one member shall
17 expire on the 30th day of June, 2005, and each seven (7) years
18 thereafter;

19 7. Position No. 7: The term of office of one member shall
20 expire on the 30th day of June, 2006, and each seven (7) years
21 thereafter;

22 8. Position No. 8: The term of office shall coincide with the
23 member's term on the A&M Board; and
24

1 9. Position No. 9: The term of office shall be at the
2 direction of the chair of the A&M Board.

3 B. The Board of Trustees shall be a body corporate and shall
4 adopt and use an official seal. The Board shall elect a chair, vice
5 chair, and secretary annually, each of whom shall serve for a term
6 of one fiscal year and until a successor is elected and qualified,
7 and who shall perform such duties as the Board directs. The Board
8 shall adopt rules which it deems necessary for the operation of the
9 Board and the discharge of its duties and shall cause the minutes of
10 all meetings to be kept. The Board shall comply with the Oklahoma
11 Open Meeting Act and the Oklahoma Open Records Act.

12 C. The Board of Trustees for Oklahoma State University/Tulsa
13 may be authorized by the A&M Board to supervise and manage the
14 campus of Oklahoma State University/Tulsa and perform other
15 functions as necessary. ~~The Board of Trustees shall promulgate~~
16 ~~rules and enact policies to govern the processes and procedures of~~
17 ~~the Board.~~ It is the intent of the Legislature that in the
18 interests of immediate responsiveness to the needs of students,
19 employees, and the business community that the decision or approval
20 process be expedited.

21 D. On or after January 1, 1999, the A&M Board may assign and
22 delineate roles and responsibilities for the Board of Trustees for
23 Oklahoma State University/Tulsa. Such responsibilities may include,
24 but are not limited to, student services, facility operations,

1 student financial services, budget preparations, endowed chairs at
2 Oklahoma State University/Tulsa, and administrative operations as
3 specified by the A&M Board.

4 E. The Board of Trustees shall establish the usual and
5 customary accounts established by higher education institutions
6 within the Office of Management and Enterprise Services necessary to
7 carry out its duties.

8 ~~F. Until July 1, 2001, during the transition and development of~~
9 ~~Oklahoma State University/Tulsa, acting on behalf of the Board of~~
10 ~~Trustees for Oklahoma State University/Tulsa, Oklahoma State~~
11 ~~University is authorized and directed to negotiate contracts with~~
12 ~~institutions for courses and degree programs of study approved by~~
13 ~~the Oklahoma State Regents for Higher Education, as necessary to~~
14 ~~meet the higher education needs for the Tulsa metropolitan area.~~
15 ~~The number of degree programs offered by Northeastern State~~
16 ~~University and Langston University shall not be diminished or~~
17 ~~duplicated.~~

18 ~~G. The president of Oklahoma State University/Tulsa shall be~~
19 ~~selected by the Board of Regents for the Oklahoma Agricultural and~~
20 ~~Mechanical Colleges after completion of a search process as set~~
21 ~~forth in this subsection. The A&M Board shall appoint at least two~~
22 ~~of its members, one of whom must reside in the First Congressional~~
23 ~~District, and the Board of Trustees shall appoint at least two of~~
24 ~~its members to a search committee. The president of Oklahoma State~~

~~University may appoint other representatives of faculty, staff, and students to the search committee. The president of Oklahoma State University shall recommend a candidate in consultation with the search committee to the Board of Trustees and the A&M Board.~~

SECTION 2. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON EDUCATION OVERSIGHT, dated 03/03/2026 - DO PASS, As Amended.